

STATE OF NEW YORK

2516--A

2025-2026 Regular Sessions

IN SENATE

January 21, 2025

Introduced by Sens. GOUNARDES, BRISPORT, COMRIE, FAHY, FERNANDEZ, JACKSON, MAY, MYRIE, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Social Services -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to a refugee resettlement program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Legislative findings. The legislature hereby finds and
2 declares the following:
- 3 a. Under federal law 8 U.S.C. §1101 (a) (42), a refugee is a person
4 who is forced to flee their country of origin or last habitation due to
5 persecution, or a well-founded fear of persecution, based upon their
6 race, religion, nationality, membership in a particular social group, or
7 political opinion;
- 8 b. At the end of 2022, there were 108.4 million forcibly displaced
9 people in the world, 35.3 million of which were refugees. This is more
10 than double the recorded number in 2010, and the highest it has ever
11 been;
- 12 c. Around two-thirds of refugees live in poverty, and many are unable
13 to return to their home countries due to the lack of imminent solutions
14 to conflicts, recurrent violence, and political instability;
- 15 d. Less than 1 percent of refugees will ever be resettled to a safe
16 third country, enabling them to rebuild their lives in safety and
17 contribute to the cultural and economic fabric of a new home nation;
- 18 e. Recognizing the importance of refugee resettlement, the United
19 States created the Refugee Act of 1980;
- 20 f. Since 1980, the United States Refugee Admissions Program (USRAP)
21 has saved more than 3.7 million refugees, and resettled them across the
22 country;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD02698-02-5

g. As of 2021, New York State resettled the third most refugees in the country;

h. On September 19, 2016, the United Nations General Assembly unanimously adopted the New York Declaration for Refugees and Migrants, which reaffirms the importance of the international refugee regime and contains a wide range of commitments to strengthen and enhance mechanisms to protect these individuals;

i. Research from reputable sources including the Fiscal Policy Institute, Urban Institute, Pew Research Center, and New American Economy find a positive economic and social impact of refugees across New York State;

j. Governor Kathy Hochul reaffirmed New York State's commitment to helping refugees on August 19, 2021 by welcoming those fleeing Afghanistan;

k. The Statue of Liberty, a national monument and icon of freedom that has been welcoming immigrants from across the world to New York State since 1886, states, "Give me your tired, your poor, your huddled masses yearning to breathe free, the wretched refuse of your teeming shore. Send these, the homeless, tempest-tossed to me, I lift my lamp beside the golden door!";

l. The State of New York has been proud to partner with the United States Citizenship and Immigration Services in assisting and resettling refugees from USRAP through its Bureau of Refugee Services, which is housed within the Office of Temporary and Disability Assistance;

m. The legislature hereby affirms, with this act, its continued commitment to resettle refugees through the United States Refugee Admissions Program within the boundaries of this state for as long as individuals around the world are displaced from their home countries.

§ 2. Subdivision 3 of section 358 of the social services law, as amended by section 39 of part B of chapter 436 of the laws of 1997, is amended to read as follows:

3. (a) If and for so long as the federal government provides one hundred percent funding therefor, the department is authorized to operate a Cuban and Haitian entrant program ~~[and a refugee resettlement program pursuant to title IV of the federal immigration and nationality act, including provision for refugee cash assistance, refugee medical assistance, refugee child welfare services, and refugee social services. The department shall submit the plan for such refugee resettlement program to the federal department of health and human services and shall act for the state in any negotiations relative to the submission and approval of such plan and make any arrangement which may be necessary to obtain and retain such approval]~~.

(b) The department shall establish a refugee resettlement program, to be administered by the bureau of refugee services housed within the department. The refugee resettlement program described in this subdivision may be funded from the federal and/or state government or governments, or political subdivisions thereof.

(c) The refugee resettlement program established in paragraph (b) of this subdivision shall have the core mission of directing resources to local public or private entities that assist refugees in:

(i) achieving economic and social self-sufficiency;
(ii) assisting victims of human trafficking; and
(iii) assuring proper foster care for unaccompanied refugees and entrant minors.

(d) Such refugee resettlement program administered by the department shall partner with public or private entities which assist refugees in

the provision or promotion of: civic and social engagement; mentoring services for youth; comprehensive case management; food, clothing, shelter, school supplies, or other basic needs; employment and training services; English language instruction; community school activities; temporary cash and medical assistance; programs to increase health literacy; programs to increase access to public and/or private health insurance; initial medical screenings and immunizations; programs designed to ease the transition of school-aged refugee children into elementary, middle, and high schools; support services for victims of human trafficking; social and supportive services for refugees aged sixty or older; foster care programs for unaccompanied refugee minors; and other social services programs created to meet other needs of refugees as such needs arise.

§ 3. This act shall take effect immediately.